



CHAPTER lxxvi.

An Act to confirm certain Provisional Orders of the Local Government Board relating to Ashborne Beckenham
Liverpool Lytham Manchester Padiham and Rhyl.

A.D. 1919.

[15th August 1919.]

WHEREAS the Local Government Board have made the Provisional Orders set forth in the schedule hereto under the provisions of the Public Health Act 1875:

38 & 39 Vict.
c. 55.

And whereas it is requisite that the said Orders should be confirmed by Parliament:

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Orders set out in the schedule hereto shall be and the same are hereby confirmed and all the provisions thereof shall have full validity and force.

Orders in
schedule
confirmed.

2. This Act may be cited as the Local Government Board's Provisional Orders Confirmation (No. 2) Act 1919.

Short title.

[9 & 10 GEO. 5.] *Local Government Board's* [Ch. lxxvi.]
Provisional Orders Confirmation (No. 2) Act, 1919.

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 303 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order (hereinafter referred to as "the commencement of this Order") the Local Acts shall be partially repealed and altered so that the following provisions shall take effect that is to say :—

A.D. 1919.
 —
Ashborne
Order.
 38 & 39 Vict.
 c. 55.

Art. I. Section 25 of the Act of 1912 shall have effect as if to the paragraph lettered (B) of subsection (1) of that section there were added the words "and with the sanction of the Local Government Board such " further sums not exceeding in the whole sixteen thousand pounds " as may be necessary."

Additional
 borrowing
 powers for
 gas under-
 taking.

Art. II. Section 26 of the Act of 1912 shall apply and have effect as if there were inserted in the section immediately after the words "thirty-five years from the date or dates of the borrowing of the same" the words "in the case of moneys other than moneys borrowed " with the sanction of the Local Government Board and in the case " of moneys borrowed with the sanction of the Local Government " Board such period or periods not exceeding sixty years from the " date of borrowing as that Board may sanction."

Period for
 repayment
 of borrowed
 moneys.

Art. III. Section 58 of the Act of 1911 shall have effect as if the words "not less than twenty-tenths of an inch in height at the main " were inserted in subsection (1) thereof instead of the words "not less than eight-tenths of one inch in height at the main or".

Pressure of
 gas.

Art. IV.—(1) Within three months from the commencement of this Order or such further time as the Local Government Board may allow the Council shall provide at the testing place or one of the testing places provided by the Council in pursuance of Section 19 of the Act of 1912 apparatus for testing the calorific power of the gas supplied by them similar to the apparatus for the time being prescribed by the Metropolitan Gas Referees for testing the calorific power of the gas supplied by the companies referred to in the London Gas Act 1905.

Substituting
 standard
 calorific
 power for
 prescribed
 illuminating
 power of gas.

5 Edw. 7,
 c. clv.

(2) The gas supplied by the Council shall when tested in the mode and under the conditions for the time being prescribed by the Metropolitan Gas Referees be of a calorific power of not less than five hundred British thermal units and in the interpretation of this Order the expression "standard calorific power" shall mean five hundred British thermal units and the expression "calorific power" shall mean gross calorific power per cubic foot of gas.

(3) Not more than one testing for calorific power shall be made on any one day Provided that if on any occasion of testing the

[Ch. lxxvi.] *Local Government Board's* [9 & 10 GEO. 5.]
Provisional Orders Confirmation (No. 2) Act, 1919.

A.D. 1919. calorific power of the gas is found to be below the standard calorific power a second testing shall be made on the same day after an interval of not less than one hour and the average of the two testings shall be deemed to be the calorific power of the gas on that day.

*Ashborne
Order.*

(4) If on any day the calorific power of the gas supplied by the Council when tested as required by subdivision (3) of this Article is found to be below the standard calorific power the Council shall be liable to the following penalties in respect of such deficiency that is to say :—

If the deficiency does not exceed fourteen British thermal units a sum not exceeding two pounds ;

If the deficiency exceeds fourteen British thermal units but does not exceed twenty-eight British thermal units a sum not exceeding five pounds ;

If the deficiency exceeds twenty-eight British thermal units then for each complete twenty-eight British thermal units of defective power a sum not exceeding ten pounds.

(5) The provisions of Sections 12 and 32 of the Gasworks Clauses Act 1871 with reference to the testing for the illuminating power shall cease to apply to the Council and Sections 28 to 31 33 and 36 of that Act and Section 22 of the Act of 1912 shall in their application to the Council be construed as if calorific power were therein referred to instead of illuminating power and with such alterations as are necessary to bring them into conformity with the provisions of this Order.

(6) Section 20 of the Act of 1912 and Section 55 of the Act of 1911 are hereby repealed.

Powers as to
variation of
standard
calorific
power and
pressure.

Art. V. If after the expiration of five years from the commencement of this Order application is made to the Local Government Board by the Council or by any body or person who may appear to the Board to have a substantial interest in the matter to reduce or increase the standard calorific power or the pressure prescribed by this Order the Board may after considering the representations of the parties and any other persons who appear to the Board to be interested make such reduction or increase of the standard calorific power or of the prescribed pressure as the Board think fit.

Inquiries and
expenses.

Art. VI.—(1) The Local Government Board may direct any inquiries to be held by their inspectors which they may deem necessary with reference to the purposes of this Order and the inspectors of the Board shall for the purposes of any inquiry have all such powers as they have for the purposes of inquiries directed by the Board under the Public Health Act 1875.

[9 & 10 GEO. 5.] *Local Government Board's* [Ch. lxxvi.]
Provisional Orders Confirmation (No. 2) Act, 1919.

(2) Where the Board cause any such inquiry as aforesaid to be held the costs incurred by the Board in relation to that inquiry (including such reasonable sum not exceeding three guineas a day as the Board may determine for the services of any inspector or officer of the Board engaged in the inquiry) shall be paid by the Council and the Board may certify the amount of the costs so incurred and any sum so certified and directed by the Board to be paid by the Council shall be a debt due to the Crown from the Council.

A.D. 1919.
—
Ashborne Order.

Art. VII. Notwithstanding anything in this Order the Council shall not under the powers of this Order borrow any money during the continuance of the present war and twelve months thereafter unless the consent of the Treasury has been previously obtained.

Consent of Treasury to borrowing during war.

Art. VIII. Nothing in this Order shall except the Council or their gas undertaking from the provisions of any general Act relating to the supply of gas which may be passed in this or any future session of Parliament.

Provision as to general Acts relating to gas supply.

Art. IX. This Order may be cited as the Ashborne Order 1919.

Short title.

Given under the Seal of Office of the Local Government Board
this Twenty-second day of May One thousand nine hundred
and nineteen.

(L.S.)

CHRISTOPHER ADDISON President.
H. C. MONRO Secretary.

URBAN DISTRICT OF BECKENHAM.

*Provisional Order for partially repealing and altering the
Beckenham Urban District Council Act 1903.*

Beckenham Order.

To the Urban District Council of Beckenham ;—

And to all others whom it may concern.

WHEREAS the Urban District Council of Beckenham (hereinafter referred to as "the Council") are the local authority within the meaning of the Public Health Act 1875 for the Urban District of Beckenham (hereinafter referred to as "the District") and there are in force in the District the unrepealed provisions of the Beckenham Urban District Council Act 1903 (hereinafter referred to as "the Local Act");

3 Edw. 7.
c. ccxvii.

And whereas by Part XII. of the Local Act provision was made with regard to the borrowing of money by the Council and the

[Ch. lxxvi.] *Local Government Board's* [9 & 10 GEO. 5.]
Provisional Orders Confirmation (No. 2) Act, 1919.

A.D. 1919. repayment of any moneys so borrowed and by Section 176 of the Local
Beckenham Act the Council were empowered to re-borrow moneys borrowed by
Order. them under the Local Act;

And whereas the Council have made application to the Local Government Board for the issue of a Provisional Order to partially repeal alter or amend the Local Act in the manner hereinafter set forth :

38 & 39 Vict. Now therefore We the Local Government Board in pursuance of
c. 55. the powers given to Us by Section 303 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the Local Act shall be partially repealed and altered so that the following provisions shall take effect that is to say :—

Provision for
enabling
Council to
borrow for
purpose of
providing
temporarily
for current
expenses.

Art. I.—(1) The Council may from time to time for the purpose of providing temporarily for any current expenses that may be incurred by them under the provisions of any public general or local Act borrow by way of temporary loan or overdraft from any bank and in either case at such rate of interest as they may determine such sum as they may from time to time resolve not exceeding in the aggregate at any time an amount equal to one-tenth of the total aggregate amount of the before-mentioned expenses for the immediately preceding financial year and any amount so borrowed together with interest shall form a charge upon such funds or rates or upon such of the revenues of the undertakings of the Council as may be specified in the resolution of the Council authorising such borrowing and the Council may further utilise for providing temporarily for any such expenses any sinking fund reserve fund or other fund which they may have on hand crediting any such fund so utilised with such fair rate of interest not being less than three per centum per annum as they may resolve Provided that—

- (a) any sum so borrowed or utilised in respect of the current expenses of any financial year together with the interest thereon shall be repaid out of the revenue received by the Council in respect of such financial year;
- (b) the clerk to the Council shall within forty-two days after the end of each financial year furnish to the Local Government Board a special report showing precisely the operation of the powers of this Article during such year and such report shall be in such form and shall contain such information as that Board shall approve or require;
- (c) the Local Government Board may make such investigation as may be necessary to satisfy themselves that the requirements of this Article have been complied with and if it

[9 & 10 GEO. 5.] *Local Government Board's* [Ch. lxxvi.]
Provisional Orders Confirmation (No. 2) Act, 1919.

appear to the Local Government Board by the said report or by such investigation that the Council have failed to comply with the requirements of this Article that Board may by order suspend the operation of the powers of this Article for such period as they may think fit.

A.D. 1919.
Beckenham
Order.

(2) The provisions of this Article limiting the amount of the sum which the Council may borrow and the provisions of paragraph (a) of subdivision (1) of this Article requiring the repayment thereof out of the revenue referred to in that paragraph shall not affect any lender or his security for the loan or overdraft and the interest thereon respectively or his right to obtain payment thereof from the Council.

(3) The provisions of this Article shall cease to be in force at the expiration of five years from the Thirty-first day of March One thousand nine hundred and twenty unless they shall have been continued by Act of Parliament or by an order made by the Local Government Board and any such order may make such modifications or amendments in the provisions of this Article as may appear to the Board to be necessary.

Art. II.—(1) Section 176 of the Local Act is hereby repealed.

Power to
re-borrow.

(2) The Council shall have power—

(a) to borrow for the purpose of paying off any moneys previously borrowed under any statutory borrowing power which are intended to be forthwith repaid; or

(b) to borrow in order to replace moneys which during the previous twelve months have been temporarily applied from other funds of the Council in repaying moneys previously borrowed under any statutory borrowing power and which at the time of such repayment it was intended to replace by borrowed moneys.

(3) Any moneys borrowed under this Article shall for the purposes of repayment be deemed to form part of the original loan and shall be repaid within that portion of the period prescribed for the repayment of that loan which remains unexpired and the provisions which are for the time being applicable to the original loan shall apply to the moneys borrowed under this Article.

(4) The Council shall not have power to borrow for the purpose of making any payment to a sinking fund or of paying any instalment or making any annual payment which has or may become due in respect of borrowed moneys.

(5) The Council shall not have power to borrow in order to replace any moneys previously borrowed which have been repaid—

(a) by instalments or annual payments; or

(b) by means of a sinking fund; or

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A.D. 1919.

*Beckenham
Order.*

(c) out of moneys derived from the sale of land ; or

(d) out of any capital moneys properly applicable to the purpose of the repayment other than moneys borrowed for that purpose.

(6) In this Article the expression "statutory borrowing power" means any power whether or not coupled with a duty of borrowing or continuing on loan or re-borrowing money or of redeeming or paying off or creating or continuing payment of or in respect of any annuity rentcharge rent or other security representing or granted in lieu of consideration money for the time being existing under any Act of Parliament public or local passed or to be passed or under any Provisional Order confirmed by Act of Parliament passed or to be passed or under any order or sanction of any Government Department made or given or to be made or given by authority of any Act of Parliament passed or to be passed.

Short title.

Art. III. This Order may be cited as the Beckenham Order 1919.

Given under the Seal of Office of the Local Government Board
this Sixteenth day of May One thousand nine hundred and
nineteen.

(L.S.)

CHRISTOPHER ADDISON President.
H. C. MONRO Secretary.

CITY OF LIVERPOOL.

*Liverpool
Order.*

*Provisional Order for altering the Liverpool Corporation
Act 1900 and the Liverpool Corporation (General
Powers) Act 1905.*

To the Lord Mayor Aldermen and Citizens of the City of
Liverpool ; —

And to all others whom it may concern.

WHEREAS the City of Liverpool (hereinafter referred to as "the City") is an Urban Sanitary District of which the Lord Mayor Aldermen and Citizens acting by the Council (hereinafter referred to as "the Corporation") are the Urban Sanitary Authority ;

15 Vict. c. iii.
63 & 64 Vict.
c. cccxxvii.
5 Edw. 7.
c. clxxvii.

And whereas there are in force in the City the unrepealed provisions of the Liverpool Library and Museum Act 1852 the Liverpool Corporation Act 1900 and the Liverpool Corporation (General Powers) Act 1905 (each of which Acts is hereinafter separately referred to as the Act of the year in which it was passed) as altered by certain

[9 & 10 GEO. 5.] *Local Government Board's* [Ch. lxxvi.]
Provisional Orders Confirmation (No. 2) Act, 1919.

other Local Acts and by certain Provisional Orders duly confirmed by Parliament which do not affect the subject-matter of this Order;

A.D. 1919.

*Liverpool
Order.*

And whereas by the Act of 1852 the Corporation were empowered to establish and maintain a public library and museum with a gallery of arts;

And whereas by Section 34 of the Act of 1900 the Corporation are empowered once in every year or oftener if they think fit to make one or more rate or rates to be called the library and museum rate for the purpose of defraying all or any of the expenses of or incidental to carrying into effect the provisions of the Act of 1852 or the provisions of any other Act or Acts relating to public libraries lending libraries reading rooms and art galleries in the City and for the purpose of providing for the interest on and the repayment of any moneys borrowed for the purposes of the said Acts or any of them and by the said Section 34 as altered by Section 16 of the Act of 1905 it is provided that the amount to be levied in any one year by means of such rate or rates shall not exceed the amount which would be produced by a poor rate for that year of two pence in the pound on the rateable value of the property in the City liable to such rate;

And whereas the Corporation have made application to the Local Government Board for the issue of a Provisional Order to alter or amend the Act of 1900 as altered by the Act of 1905 in the manner hereinafter set forth:

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 303 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the Act of 1900 as altered by the Act of 1905 shall be further altered so that the following provisions shall take effect that is to say:—

38 & 39 Vict.
c. 55.

Art. I. Section 34 of the Act of 1900 as altered by Section 16 of the Act of 1905 shall be read and have effect as if the words "three pence" were inserted in the section as so altered instead of the words "two pence."

Alteration
of limit of
library &c.
rate.

Art. II. This Order may be cited as the Liverpool Order 1919.

Short title.

Given under the Seal of Office of the Local Government Board
this Twenty-second day of May One thousand nine hundred
and nineteen.

(L.S.)

CHRISTOPHER ADDISON President.
H. C. MONRO Secretary.

[Ch. lxxvi.] *Local Government Board's* [9 & 10 GEO. 5.]
Provisional Orders Confirmation (No. 2) Act, 1919.

A.D. 1919.

URBAN DISTRICT OF LYTHAM.

*Lytham
Order.*

*Provisional Order for altering the Lytham Improvement
Act 1904 and certain Confirming Acts.*

To the Urban District Council of Lytham ; —

And to all others whom it may concern.

4 Edw. 7.
c. clv.

5 & 6 Geo. 5.
c. xxi.

7 & 8 Geo. 5.
c. lvii.

WHEREAS the Urban District Council of Lytham (hereinafter referred to as "the Council") are the local authority within the meaning of the Public Health Act 1875 for the Urban District of Lytham (hereinafter referred to as "the District") and the unrepealed provisions of the Lytham Improvement Act 1904 (hereinafter referred to as "the Local Act") as altered by the Lytham Order 1915 which was confirmed by the Local Government Board's Provisional Orders Confirmation (No. 6) Act 1915 and the Lytham Order 1917 which was confirmed by the Local Government Board's Provisional Orders Confirmation (No. 2) Act 1917 (which Provisional Orders and Confirming Acts are hereinafter respectively referred to as "the Orders" and "the Confirming Acts" and each of which Provisional Orders and Confirming Acts is hereinafter referred to as the Order or the Act of the year in which it was made or passed as the case may be) are in force in the District ;

And whereas by Sections 25 and 26 (as amended by subdivision (2) of Article IV. of the Order of 1917) in Part IV. of the Local Act the Council were empowered to place chairs in any street or recreation ground or other public place for the use of the public and to charge reasonable sums for the use of the chairs to pay or contribute towards the payment of a public band of music for the District (provided that the amount of the said payments or contributions did not in any year exceed a sum equal to a rate of one penny in the pound on the assessable value of the District for the purposes of the general district rate) to enclose in any recreation ground or on the beach seashore or other public place an area within which such band shall play and to make regulations as to the time and place for the playing of the band and the payment to be made for admission within the enclosure and other matters in relation thereto ;

And whereas by Section 28 of the Local Act it was provided that all expenses incurred by the Council in the exercise of the powers of Part IV. of the Local Act should be paid out of the district fund of the District and that any moneys received by the Council in connexion with the execution of the purposes of the said Part should

[9 & 10 GEO. 5.] *Local Government Board's* [Ch. lxxvi.]
Provisional Orders Confirmation (No. 2) Act, 1919.

subject to payment of the expenses incidental thereto be carried to the credit of the district fund ;

A.D. 1919.

*Lytham
Order.*

And whereas by paragraph (d) of Article II. of the Order of 1915 the Council were empowered to charge for admission to the public hall assembly rooms and baths acquired or provided under the powers conferred by that Article and by Article IV. of the Order of 1915 the Council were required to keep separate accounts of their public hall assembly rooms marine lake bathing pool and baths undertaking and provision was made with respect to the application of the revenue of that undertaking ;

And whereas the Council have made application to the Local Government Board for the issue of a Provisional Order to alter or amend the Local Act and the Confirming Acts so far as they relate to the Orders in the manner hereinafter set forth :

Now therefore We the Local Government Board in pursuance of the powers given to Us by Sections 297 and 303 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the Local Act and the Confirming Acts so far as they relate to the Orders shall be altered so that the following provisions shall take effect that is to say :—

38 & 39 Vict.
c. 55.

Art. I. The Council may procure and sell programmes of any performance of a public band of music provided by them in pursuance of and under the provisions of Section 26 of the Local Act.

Authorising
sale of pro-
grammes for
band perform-
ances.

Art. II.—(1) The Council shall distinguish in their accounts relating to the district fund of the District and to their public hall assembly rooms marine lake bathing pool and baths undertaking—

Application
of receipts
under Local
Act and
Order of 1915
towards
expense of
band of
music.

(a) all moneys received by them for charges in respect of—

(i) chairs provided by them under Section 25 of the Local Act as amended as aforesaid ;

(ii) admission to any area enclosed for the purposes of a public band of music under Section 26 of the Local Act as amended as aforesaid ;

(iii) admission to the public hall assembly rooms or other buildings provided or acquired under Article II. of the Order of 1915 for the purpose of attending performances of bands of music ; and

(iv) sales of programmes of performances of bands of music under the power conferred upon them by Article I. of this Order ; and

(b) all expenses incurred by them in the exercise of their powers under Section 25 of the Local Act under Section 26 of the

[Ch. lxxvi.] *Local Government Board's* [9 & 10 Geo. 5.]
Provisional Orders Confirmation (No. 2) Act, 1919.

A.D. 1919.

*Lytham
Order.*

Local Act so far as it relates to the admission to any area enclosed for band performances under paragraph (d) of Article II. of the Order of 1915 so far as it relates to the admission to any building on any occasion when band performances are given and under Article I. of this Order.

(2) Where the moneys received by the Council in respect of the charges specified in subdivision (1) of this Article exceed the amount of the expenses specified in that subdivision the Council may apply the difference towards the expense of a public band of music for the District:

Provided that the aggregate of the aforesaid expenses and of the expenses incurred by the Council in connexion with the provision of a public band of music under Section 26 of the Local Act shall not in any year exceed the total amount of the moneys received by the Council in respect of the aforesaid charges together with a sum equal to a rate of one penny in the pound on the assessable value of the District for the purposes of the general district rate.

Short title.

Art. III. This Order may be cited as the Lytham Order 1919.

Given under the Seal of Office of the Local Government Board
this Sixteenth day of May One thousand nine hundred and
nineteen.

(L.S.)

CHRISTOPHER ADDISON President.
H. C. MONRO Secretary.

CITY OF MANCHESTER.

*Manchester
Order.*

*Provisional Order for altering the Manchester Corporation
Act 1891.*

To the Lord Mayor Aldermen and Citizens of the City of
Manchester;—

And to all others whom it may concern.

54 & 55 Vict.
c. ccvii.

WHEREAS the City of Manchester (hereinafter referred to as "the City") is an Urban Sanitary District of which the Lord Mayor Aldermen and Citizens acting by the Council (hereinafter referred to as "the Corporation") are the Urban Sanitary Authority and there are in force in the City the unrepealed provisions of the Manchester Corporation Act 1891 (which Act is hereinafter referred to as "the Local Act") as altered by certain Provisional Orders duly confirmed by Parliament which do not affect the subject-matter of this Order;

[9 & 10 GEO. 5.] *Local Government Board's* [Ch. lxxvi.]
Provisional Orders Confirmation (No. 2) Act, 1919.

And whereas by section 16 of the Local Act it was provided that for the purposes of the execution within the City of the Public Libraries Act 1855 and the Acts amending the same such Acts should be read and have effect as if the limit thereby imposed on the amount authorised to be paid out of or levied by a rate were twopence instead of one penny in the pound ;

A.D. 1919.

*Manchester
Order.*

And whereas the Corporation have made application to the Local Government Board for the issue of a Provisional Order to alter or amend the Local Act in the manner hereinafter set forth :

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 303 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the Local Act shall be altered so that the following provisions shall take effect that is to say :—

38 & 39 Vict.
c. 55.

Art. I. Section 16 of the Local Act shall have effect as if the words "threepence instead of one penny in the pound" were inserted therein in substitution for the words "twopence instead of one penny in the pound."

Increase of
library rate.

Art. II. This Order may be cited as the Manchester Order 1919.

Short title.

Given under the Seal of Office of the Local Government Board
this Twenty-eighth day of May One thousand nine hundred
and nineteen.

(L.S.)

CHRISTOPHER ADDISON President.

H. C. MONRO Secretary.

URBAN DISTRICT OF PADIHAM.

*Provisional Order for altering the Padiham Urban District
Council Act 1908.*

*Padiham
Order.*

To the Urban District Council of Padiham ;—

And to all others whom it may concern.

WHEREAS the Urban District Council of Padiham (hereinafter referred to as "the Council") are the local authority within the meaning of the Public Health Act 1875 for the Urban District of Padiham (hereinafter referred to as "the District") ;

[Ch. lxxvi.] *Local Government Board's* [9 & 10 GEO. 5.]
Provisional Orders Confirmation (No. 2) Act, 1919.

A.D. 1919. And whereas there are in force in the District the unrepealed
 provisions of the Padiham Local Board Act 1889 the Padiham Urban
 Padiham District Council (Water) Act 1896 and the Padiham Urban District
 Order. Council Act 1908 (each of which Acts is hereinafter referred to as the
52 & 53 Vict. Act of the year in which it was passed) as altered by a Provisional
c. lii. Order duly confirmed by Parliament which does not affect the subject-
59 & 60 Vict. matter of this Order ;
c. xlix.
8 Edw. 7.
c. civ.

And whereas the Council under the powers conferred upon them and their predecessors the Local Board for the District of Padiham and Hapton (hereinafter referred to as "the Local Board") supply water within the District and a certain adjoining area and by the Act of 1889 the Local Board were authorised to make and maintain a reservoir conduits and other works and conveniences and by Section 2 of the Act of 1896 the period limited by Section 12 of the Act of 1889 for the construction of the said works and conveniences was extended to the fifth day of July one thousand nine hundred and eleven ;

And whereas by Section 38 of the Act of 1908 it was provided that the powers conferred on the Local Board by the Act of 1889 for the construction of the reservoir conduits and other works and conveniences authorised by the Act of 1889 except so far as the same might have been completed should be extended and continued for the period of ten years from the said fifth day of July one thousand nine hundred and eleven ;

And whereas by Section 39 of the Act of 1908 it was provided that the powers granted to the Local Board their successors and assigns under the terms of an Indenture (hereinafter referred to as "the Indenture") dated the First day of November One thousand eight hundred and ninety-two and made between Arthur Townley Parker therein described and the Local Board to enter into and upon certain parcels of land described in the Indenture to dig for get work take and carry away all such clay as should be needed or required for constructing and making the reservoir conduits and other works and conveniences authorised by the Act of 1889 and for that purpose to lay and make tram or other roads for conveying the said clay from the said parcels of land to the said reservoir and works and to use such roads at pleasure together with all such rights of way and other rights as should be necessary to enable the Local Board their successors and assigns to utilise and exercise the said powers granted by the Indenture were thereby made applicable to the extended time granted by the Act of 1908 for the making of the said reservoir conduits and other works and conveniences and it was provided that such powers might and should be exerciseable by the Council their successors and

[9 & 10 GEO. 5.] *Local Government Board's* [Ch. lxxvi.]
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assigns during the execution and until the completion of the said reservoir conduits and other works and conveniences ;

A.D. 1919.

Padiham
Order.

And whereas by Section 53 of the Act of 1908 the Council were empowered subject as therein provided to prohibit the use of the road under the railway bridge in Shakespeare Street in the District for any traffic other than foot passengers and by Section 55 of the Act of 1908 provision was made for the protection of certain persons (in that Section and hereinafter referred to as "the owners of the Gawthorpe Estate") and it was by subsection (A) of the said Section 55 provided that the Council should not put in force the powers conferred upon them by the said Section 53 until they should have executed all the works necessary to make that part of Dryden Street (hereinafter referred to as "the northern part of Dryden Street") which is described in subsection (B) of the said Section 55 fit for vehicular traffic in manner provided by subsection (C) of the Section ;

And whereas by subsection (D) of the said Section 55 it was provided that the Council should not exercise any of their statutory powers for paving metalling channelling and making good the northern part of Dryden Street or for flagging the footpaths thereof pursuant to such notice as is mentioned in subsection (C) of the Section until the land on both sides of the northern part of Dryden Street was let or used for building purposes or until a period of seven years and six months should have elapsed from the date of the closing of the road under the railway bridge in Shakespeare Street for vehicular traffic pursuant to Section 53 of the Act of 1908 whichever event should first happen and by subsection (F) of the said Section 55 it was provided that when the said land on both sides of the northern part of Dryden Street should have been let or used for building purposes or at the expiration of the said period of seven years and six months whichever event should first happen the Council should forthwith proceed to pave metal channel and make good the northern part of Dryden Street and make and flag the footpath on each side thereof and apportion the expenses thereby incurred so as to include in such expenses and recover from the owners of the Gawthorpe Estate in addition to the costs of paving metalling flagging and channelling all the initial costs of forming levelling excavating making and sewerage the northern part of Dryden Street in manner provided by the said Section but without charging the owners of the Gawthorpe Estate anything for interest on such initial costs in the meantime ;

And whereas by subsection (H) of the said Section 55 the Council were empowered to enter into agreements with the owners of lands forming fronting adjoining or abutting on the continuation of Dryden

[Ch. lxxvi.] *Local Government Board's* [9 & 10 GEO. 5.]
Provisional Orders Confirmation (No. 2) Act, 1919.

A.D. 1919. Street therein described and certain parts of Abingdon Street and Thompson Street for the making thereof upon the terms and conditions contained in the said section with respect to so much of the northern part of Dryden Street as lies between Victoria Road and Cardwell Street and it was provided that in every such case the provisions of the section should apply mutatis mutandis to the part or parts of those streets with respect to which the owner thereof or of the lands forming fronting adjoining or abutting thereon should enter into an agreement with the Council;

Padiham
Order.

And whereas the Council have executed the works necessary to make the northern part of Dryden Street fit for vehicular traffic in manner provided by subsection (c) of the said Section 55 and have in pursuance of agreements made under subsection (H) of the section with the owners of certain lands executed similar works with respect to the parts of Abingdon Street and Thompson Street referred to in that subsection and the Council have incurred certain costs in executing the aforesaid works;

And whereas it is expedient that the said Section 55 should be amended as hereinafter provided and the owners of the Gawthorpe Estate and the owners of the lands parties to the said agreements have respectively consented to the said amendments in so far as they will be affected thereby;

And whereas the Council have made application to the Local Government Board for the issue of a Provisional Order to alter the Act of 1908 in the manner hereinafter set forth:

38 & 39 Vict
c. 55.

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 303 of the Public Health Act 1875 and by any other Statutes in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the Act of 1908 shall be altered so that the following provisions shall take effect that is to say:—

Further ex-
tension of
time for con-
struction of
waterworks.

Art. I.—(1) The time limited by Section 38 of the Act of 1908 for the exercise of the powers referred to in that Section shall be extended for the period of one year from the Fifth day of July One thousand nine hundred and twenty-one.

(2) Section 39 of the Act of 1908 shall apply to the further extension of time granted by sub-division (1) of this Article.

Altering pro-
visions of
Section 55 of
Act of 1908
for protection
of owners of
Gawthorpe
Estate and
others.

Art. II. Section 55 of the Act of 1908 shall have effect and shall be deemed to have always had effect as if—

(1)—(a) in the subsection (D) there had been inserted the words
“fifteen years” instead of the words “seven years and six
months”; and

[9 & 10 GEO. 5.] *Local Government Board's* [Ch. lxxvi.]
Provisional Orders Confirmation (No. 2) Act, 1919.

(b) in the subsection (F) there had been inserted the words "fifteen years" instead of the words "seven years and six months" and the words "and interest on such initial costs as from " the Eighteenth day of May One thousand nine hundred " and eighteen at the rate of five pounds per centum per " annum" instead of the words "but without charging " such owners anything for interest on such initial costs " in the meantime"; and

A.D. 1919.
Padiham
Order.

(2) Any agreement made under subsection (H) of the section with respect to the parts of Abingdon Street and Thompson Street referred to in that subsection had been made under the section as altered by this Article and were binding upon the owner of any property for the time being and all persons claiming through or under an owner party to the agreement or any successor in title.

Art. III. This Order may be cited as the Padiham Order 1919. Short title.

Given under the Seal of Office of the Local Government Board
this Twenty-eighth day of May One thousand nine hundred
and nineteen.

(L.S.)

CHRISTOPHER ADDISON President.
H. C. MONRO Secretary.

URBAN DISTRICT OF RHYL.

Provisional Order for partially repealing and altering the Rhyl Rhyl Order.
Improvement Act 1852 and the Rhyl Gas Act 1891.

To the Urban District Council of Rhyl;—

And to all others whom it may concern.

WHEREAS the Urban District Council of Rhyl (hereinafter referred to as "the Council") are the local authority within the meaning of the Public Health Act 1875 for the Urban District of Rhyl (hereinafter referred to as "the District") and there are in force in the District the unrepealed provisions of the Rhyl Improvement Act 1852 (hereinafter referred to as "the Act of 1852") and of the Rhyl Gas Act 1891 (hereinafter referred to as "the Act of 1891") as altered by the Rhyl Order 1893 which was confirmed by the Local Government Board's Provisional Orders Confirmation (No. 9) Act 1893 and the

15 & 16 Vict.
c. xxxii.
54 & 55 Vict.
c. cii.
56 & 57 Vict.
c. cxvii.

[Ch. lxxvi.] *Local Government Board's* [9 & 10 GEO. 5.]
Provisional Orders Confirmation (No. 2) Act, 1919.

A.D. 1919. Rhyl Order 1908 (hereinafter referred to as "the Order of 1908") which was confirmed by the Local Government Board's Provisional Orders Confirmation (No. 4) Act 1908;
Rhyl Order.
 8 Edw. 7.
 c. cxliv.

And whereas by the Act of 1852 the Rhyl Improvement Commissioners who were the predecessors of the Council were empowered to manufacture gas and to establish or purchase gasworks and in pursuance of Section 72 of the Act of 1891 the said Commissioners purchased the undertaking of the Rhyl Gas Company (hereinafter referred to as "the Company") and by virtue of Section 74 of the Act of 1891 and of the Order of 1908 the limits (hereinafter referred to as "the gas limits of the Council") within which the Council may supply gas are the District and part of the Parish of Rhuddlan;

And whereas by Sections 62 63 64 65 and 66 of the Act of 1891 and the provisions of the Gasworks Clauses Act 1871 applied by that Act provision was made with regard to the price to be charged by the Company for gas supplied by them and with regard to the quality and pressure of the gas and the testing of the same;
 34 & 35 Vict.
 c. 41.

And whereas the Council have made application to the Local Government Board for the issue of a Provisional Order to partially repeal alter or amend the Act of 1852 and the Act of 1891 as altered as aforesaid in the manner hereinafter set forth:

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 303 of the Public Health Act 1875 and by any other enactments in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order (hereinafter referred to as "the commencement of this Order") the Act of 1852 and the Act of 1891 as altered as aforesaid shall be partially repealed and altered so that the following provisions shall take effect that is to say:—
 38 & 39 Vict.
 c. 55.

Art. I.—(1) The price to be charged by the Council for gas supplied by them within the gas limits of the Council to persons who shall burn the same by meter shall not at any time exceed five shillings per thousand cubic feet:
 Maximum
 price of gas.

Provided that no part of the revenue arising from their gas undertaking shall be carried by the Council to the district fund when the price charged by the Council for gas supplied by them to persons who shall burn the same by meter exceeds four shillings per thousand cubic feet.

(2) Section 62 of the Act of 1891 is hereby repealed.

Art. II. — (1) The Council may demand for any gas supplied through a prepayment meter a not greater charge than for gas supplied to private consumers within the gas limits of the Council through any other kind of meter or by any other method of supply.
 Charge for
 gas supplied
 by means of
 prepayment
 meters.

[9 & 10 GEO. 5.] *Local Government Board's* [Ch. lxxvi.]
Provisional Orders Confirmation (No. 2) Act, 1919.

(2) The Council shall not charge for the hire of any prepayment meter and fittings to be used therewith any sum other than a sum of money calculated according to the quantity of gas supplied through such prepayment meter and the maximum sum to be so charged shall be at the rate of tenpence per one thousand cubic feet of gas supplied in manner aforesaid such sum to include the hire of meter and the fittings used therewith or at the rate of one shilling per one thousand cubic feet if such fittings include a cooking stove.

A.D. 1919.
Rhyl Order.

(3) The maximum charge for the hire of a prepayment meter without fittings shall be at the rate of ten per centum per annum on the cost of the meter.

(4) The said charges shall include the providing letting fixing repairing and maintenance of the meters and fittings or of the meters as the case may be and the cost of collection and other costs incurred by the Council in connexion therewith.

(5) For the purposes of this Article the expression "prepayment meter" means any meter or appliance by which the quantity of gas supplied is regulated according to the amount of money prepaid therefor.

Art. III. Section 64 of the Act of 1891 shall have effect as if the words "a column of water not less than twenty-tenths of an inch in height" were inserted therein instead of the words "a column of water from midnight to sunset not less than six-tenths of an inch in height and from sunset to midnight not less than eight-tenths of an inch in height."

Pressure of
gas.

Art. IV.—(1) Within three months from the commencement of this Order or such further time as the Local Government Board may allow the Council shall provide at the testing place provided in pursuance of Section 66 of the Act of 1891 apparatus for testing the calorific power of the gas supplied by them similar to the apparatus for the time being prescribed by the Metropolitan Gas Referees for testing the calorific power of the gas supplied by the companies referred to in the London Gas Act 1905.

Substituting
standard
calorific
power for
prescribed
illuminating
power of gas.

5 Edw. 7.
c. clv.

(2) The gas supplied by the Council shall when tested in the mode and under the conditions for the time being prescribed by the Metropolitan Gas Referees be of a calorific power of not less than five hundred British thermal units and in the interpretation of this Order the expression "standard calorific power" shall mean five hundred British thermal units and the expression "calorific power" shall mean gross calorific power per cubic foot of gas.

(3) Not more than one testing for calorific power shall be made on any one day Provided that if on any occasion of testing the calorific power of the gas is found to be below the standard calorific power a

[Ch. lxxvi.] *Local Government Board's* [9 & 10 Geo. 5.]
Provisional Orders Confirmation (No. 2) Act, 1919.

A.D. 1919. second testing shall be made on the same day after an interval of not
Rhyl Order. less than one hour and the average of the two testings shall be
 deemed to be the calorific power of the gas on that day.

(4) If on any day the calorific power of the gas supplied by the Council when tested as required by subdivision (3) of this Article is found to be below the standard calorific power the Council shall be liable to the following penalties in respect of any deficiency that is to say:—

If the deficiency does not exceed fourteen British thermal units a sum not exceeding two pounds:

If the deficiency exceeds fourteen British thermal units but does not exceed twenty-eight British thermal units a sum not exceeding five pounds:

If the deficiency exceeds twenty-eight British thermal units then for each complete twenty-eight British thermal units of defective power a sum not exceeding ten pounds.

(5) For the purposes of the foregoing provisions the expression "British thermal units" means British thermal units gross per cubic foot of gas.

(6) The provisions of Sections 12 and 32 of the Gasworks Clauses Act 1871 with reference to the testing for the illuminating power shall cease to apply to the Council and Sections 28 to 31 33 and 36 of that Act shall in their application to the Council be construed as if calorific power were therein referred to instead of illuminating power and with such other alterations as are necessary to bring them into conformity with the provisions of this Order.

(7) Sections 65 and 67 of the Act of 1891 are hereby repealed.

Powers as to
variation of
standard
calorific
power and
pressure.

Art. V. If after the expiration of five years from the commencement of this Order application is made to the Local Government Board by the Council or by any body or person who may appear to the Board to have a substantial interest in the matter to reduce or increase the standard calorific power or the pressure prescribed by this Order the Board may after considering the representations of the parties and any other persons who appear to the Board to be interested make such reduction or increase of the standard calorific power or of the prescribed pressure as the Board think fit.

Insufficient
pressure &c.

Art. VI. No penalty shall be incurred by the Council for insufficiency of pressure defect of calorific power or excess of impurity in the gas supplied by them in any case in respect of which it is proved that such insufficiency defect or excess was produced by an unavoidable cause or accident.

[9 & 10 GEO. 5.] *Local Government Board's* [Ch. lxxvi.]
Provisional Orders Confirmation (No. 2) Act, 1919.

Art. VII.—(1) The Council may purchase or hire and sell or let on hire supply and otherwise deal in and fix set up alter remove and re-fix but shall not manufacture any gas fittings and subject to the provisions of Article II. of this Order may require and take such remuneration in money or such rents and charges for and make such terms and conditions with respect to the sale letting supply fixing setting up altering removing or re-fixing of such gas fittings and for securing their safety and (if the circumstances so require) their return to the Council as may be agreed upon between the Council and the person to or for whom the said gas fittings are sold let supplied fixed set up altered removed or re-fixed.

A.D. 1919.

Rhyl Order.

Supply of
gas fittings.

(2) Any gas fittings let for hire under the provisions of this Article shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under process of any court or any proceedings in bankruptcy against the persons in whose possession the same may be. Provided that such fittings are marked or impressed with a sufficient mark or brand indicating the Council as the actual owners thereof.

(3) For the purposes of this Article the expression "gas fittings" includes any meter engine oven stove range pipe or burner or any other apparatus appliance article or thing used or intended or adapted to be used in or in connexion with the supply or consumption of gas for the purposes of lighting motive power heating and cooking or for any other purpose for which gas can or may be used.

(4) Section 58 of the Act of 1891 shall be altered by the omission therefrom of all the words following the words "the manufacture of gas".

Art. VIII.—(1) Subject as hereinafter provided all fittings or apparatus of the Council which at the commencement of this Order have been or shall thereafter be let by the Council for hire under the provisions of the Act of 1891 or of this Order shall notwithstanding that they be fixed or fastened to any part of any premises in which they may be situate or to the soil under any such premises at all times continue to be the property of and removable by the Council.

Fittings
though fixed
to premises
to remain
property of
Council.

(2) The Council shall only be entitled to the privileges and exemptions conferred by this Article in respect of such fittings and apparatus as shall have upon them respectively a distinguishing metal plate affixed to a conspicuous part thereof or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Council as the actual owners thereof.

Art. IX.—(1) The Council may by notice in writing require a consumer of gas supplied by the Council and used for the working of an engine to fix and use an anti-fluctuator in a suitable position upon the premises to which the gas is supplied and whereon the engine is

Authorising
Council to
require an
anti-fluctua-
tor to be

[Ch. lxxvi.] *Local Government Board's* [9 & 10 GEO. 5.]
Provisional Orders Confirmation (No. 2) Act, 1919.

A.D. 1919. in use or to keep an anti-fluctuator so fixed and used in proper order
Rhyl Order. and repair at all times while in use or to repair renew or replace an
 used for con- anti-fluctuator which is not in proper order or repair :

trolling
 supply of If the consumer after any such notice as aforesaid fails to fix and
 gas to a gas use an anti-fluctuator or to keep an anti-fluctuator in proper order and
 engine. repair or to repair renew or replace an anti-fluctuator which is not in
 proper order and repair the Council may cease to supply him with gas.

(2) The Council may at all reasonable times demand and shall
 thereupon have access to any anti-fluctuator fixed upon any premises
 to which gas is supplied by the Council and for the purpose of ascer-
 taining whether the anti-fluctuator is in proper order or repair may
 take off remove test inspect and replace the anti-fluctuator such taking
 off removing testing and replacing to be done at the expense of the
 Council if the anti-fluctuator be found in proper order but otherwise
 at the expense of the consumer.

(3) For the purposes of this Article an "anti-fluctuator" means
 any apparatus article or thing for the purpose of controlling and
 regulating the supply of gas to any engine and preventing any incon-
 venience or danger from the intermittent consumption of gas by the
 engine.

Period of
 error in
 defective
 meters.

Art. X.—(1) In the event of any meter used by a consumer of
 gas being tested in manner provided by the Sale of Gas Act 1859
 and being proved to register erroneously within the meaning of the
 said Act such erroneous registration shall be deemed to have first
 arisen during the then last preceding quarter of the year unless it
 be proved to have first arisen during the then current quarter.

(2) The amount of the allowance to be made to or of the surcharge
 to be made upon the consumer by the Council shall be paid by or
 to the Council to or by the consumer as the case may be and shall
 be recoverable in like manner as gas rents are recoverable by the
 Council.

Power to
 supply gas
 to premises
 in private
 streets.

Art. XI.—(1) For the purpose of the supply of gas by the Council
 on the application of the owner or occupier of premises within the
 gas limits of the Council which abut on or are being erected in any
 street laid out but not dedicated to public use the provisions of the
 Gasworks Clauses Act 1847 with respect to the breaking-up of streets
 for the purpose of laying pipes shall apply to such street as if
 Section 7 of that Act were excepted from incorporation with the
 Act of 1891.

(2) Section 308 of the Public Health Act 1875 shall apply in
 respect of any damage sustained by any person by reason of the
 exercise by the Council of the powers of this Article as if the powers
 of this Article were powers of the said Act.

[9 & 10 GEO. 5.] *Local Government Board's* [Ch. lxxvi.]
Provisional Orders Confirmation (No. 2) Act, 1919.

Art. XII. The Council may contract with any local authority A.D. 1919.
company or persons authorised to supply gas under parliamentary *Rhyl Order.*
powers in any district adjacent to the gas limits of the Council for Council may
the supply to them respectively of gas in bulk upon such terms and contract with
conditions and for such periods not exceeding in any case seven years any local
from the making of the contract as may be agreed upon but nothing authority &c.
in this Article shall authorise the Council to lay any mains or other for supply
pipes or to interfere with any street beyond the gas limits of the in bulk.
Council.

Art. XIII.—(1) The Local Government Board may direct any Inquiries and
inquiries to be held by their inspectors which they may deem necessary expenses.
with reference to the purposes of this Order and the inspectors of the
Board shall for the purposes of any inquiry have all such powers as
they have for the purposes of inquiries directed by the Board under
the Public Health Act 1875.

(2) Where the Local Government Board cause any such inquiry as
aforesaid to be held the costs incurred by the Board in relation to
that inquiry (including such reasonable sum not exceeding three
guineas a day as the Board may determine for the services of any
inspector or officer of the Board engaged in the inquiry) shall be paid
by the Council and the Board may certify the amount of the costs so
incurred and any sum so certified and directed by the Board to be
paid by the Council shall be a debt due to the Crown from the
Council.

Art. XIV. Nothing in this Order shall except the Council or Provision as
their gas undertaking from the provisions of any general Act relating to general
to the supply of gas which may be passed in this or any future Acts relating
session of Parliament. to gas supply.

Art. XV. This Order may be cited as the Rhyl Order 1919 and Short titles.
the Rhyl Orders 1893 and 1908 and this Order may be cited together
as the Rhyl Orders 1893 to 1919.

Given under the Seal of Office of the Local Government Board
this Twenty-second day of May One thousand nine hundred
and nineteen.

(L.S.)

CHRISTOPHER ADDISON President.

H. C. MONRO Secretary.

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